

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #11	CCRB Case #: 201410453	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/20/2014 8:00 AM, Friday, 11/07/2014 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/20/2015	Precinct: 46		
Date/Time CV Reported Tue, 10/14/2014 11:27 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/14/2014 11:27 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Cornelius Oshea	741	935419	WARRSEC
2. DT3 Joseph Lemm	3689	925604	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 John Mccrossen	6353	919384	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Cornelius Oshea	Abuse: On June 20 and September 18, 2014, Det. Cornelius O'Shea entered § 87(2)(b).	A . Exonerated
B . DT3 Joseph Lemm	Abuse: On June 20 and September 18, 2014, Det. Joseph Lemm entered § 87(2)(b).	B . Exonerated
C . DT3 Cornelius Oshea	Abuse: On June 20 and September 18, 2014, Det. Cornelius O'Shea searched § 87(2)(b).	C . Unsubstantiated
D . DT3 Joseph Lemm	Abuse: On June 20 and September 18, 2014, Det. Joseph Lemm searched § 87(2)(b).	D . Unsubstantiated
E . DT3 Cornelius Oshea	Discourtesy: On June 20, 2014, Det. Cornelius O'Shea acted discourteously toward § 87(2)(b).	E . Unsubstantiated

Case Summary

On June 20 and September 18, 2014, Det. Cornelius O'Shea and Det. Joseph Lemm, from the Bronx Warrant Section, entered § 87(2)(b)'s apartment located at § 87(2)(b), pursuant to four bench warrants issued for § 87(2)(b), § 87(2)(b)'s son (Allegations A and B). Det. O'Shea and Det. Lemm allegedly searched areas of § 87(2)(b)'s apartment too small for a person to be hiding and Det. O'Shea allegedly acted discourteously towards her (Allegation C, D and E). § 87(2)(b) was not arrested or issued a summons. § 87(2)(g)

Mediation, Civil and Criminal Histories

This case was not suitable for mediation. § 87(2)(b) has not filed a Notice of Claim regarding this incident § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (see Board Review 9).

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed the following CCRB complaints:
 - § 87(2)(b)
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- Det. Cornelius O'Shea has been a member of the NYPD for 10 years and there are no substantiated CCRB allegations against him.
- Det. Joseph Lemm has been a member of the NYPD for 15 years and there are no substantiated CCRB allegations against him.

Finding and Recommendations

Explanation of Subject Officer Identification

Det. O'Shea and Det. Lemm acknowledged interacting with § 87(2)(b)

Allegations not pleaded

§ 87(2)(b) alleged that neighbors informed her that on multiple dates she was unsure of, officers banged on her door and left, causing damage to the door and frame. § 87(2)(g)

Recommendations

Allegation A- On June 20 and September 18, 2014, Det. Cornelius O' Shea entered § 87(2)(b)

Allegation B- On June 20 and September 18, 2014, Det. Joseph Lemm entered § 87(2)(b)

Allegation C- On June 20 and September 18, 2014, Det. Cornelius O' Shea searched § 87(2)(b)

Allegation D- On June 20 and September 18, 2014, Det. Joseph Lemm searched § 87(2)(b)

Allegation E- On June 20, 2014, Det. Cornelius O'Shea acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) stated that on June 20, 2014, she was sleeping in her apartment when she heard banging on the door (and later noticed damage to her door, which she believed was due to the banging). § 87(2)(b) opened the door and Det. O'Shea and Det. Lemm asked for § 87(2)(b), § 87(2)(b)'s son, who was not at home. The officers showed § 87(2)(b) a bench warrant for § 87(2)(b) and then entered the apartment. The officers walked in different directions and searched the apartment including drawers in § 87(2)(b)'s and § 87(2)(b) bedrooms, under and in between mattresses and a sofa, closets, curtains, and they emptied a paper shopping bag stuffed with papers. The officers also opened the stove, the refrigerator, the microwave, and looked in the smaller dining room. § 87(2)(b) was nervous and told the officers she recently had heart surgery. Det. O'Shea allegedly cupped his genitals with both hands, and said, "I have a boo-boo right here." The officers asked § 87(2)(b) for § 87(2)(b) location and told § 87(2)(b) to have § 87(2)(b) call them when he returned. Det. O'Shea handed § 87(2)(b) his business card and the officers left. On September 18, 2014, at approximately 6:00 a.m. or 6:30 a.m., § 87(2)(b) was in her apartment when she heard a knock on her door. § 87(2)(b) answered the door and approximately 8 to 12 officers, in both uniform and in plainclothes, entered and searched her apartment in the same manner as the prior occasion. § 87(2)(b) did not know if the officers involved in this incident were the same ones from the incident on June 20, 2014, because all of the officers look the same to her (see § 87(2)(b)'s statement).

Det. O'Shea was the Warrant Squad officer assigned to finding § 87(2)(b). He and Det. Lemm acknowledged conducting multiple visits to § 87(2)(b)'s apartment in search of § 87(2)(b). However, neither officer recalled what occurred during each visit or on the incident dates. The officers stated that some of the visits resulted in § 87(2)(b) interacting with them and the officers entering the apartment and searching for § 87(2)(b). Other times, no one answered the door. The officers denied searching § 87(2)(b)'s apartment to the extent she alleged—i.e. in areas where a person could not be hiding—and they both denied acting discourteously towards her (see Board Review 5 and 6).

§ 87(2)(b) had four bench warrants which were issued between April 21, 2014 and June 11, 2014. All of the bench warrants have the incident location listed as § 87(2)(b) address (see Board Review 4).

According to Criminal Law Procedure Law 120.80, officers may execute a bench warrant by entering any premises in which they reasonably believe the defendant to be present (see Board Review 10).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegations A and B** be closed as **Exonerated**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that **Allegations C, D and E** be closed as **Unsubstantiated**.

Pod: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date